

As a Senior Indian MACT Lawyer, I have carefully reviewed the case data for Dummy Kumar. Below are the professional, court-ready legal drafts as requested, adhering strictly to Indian legal formats and tone.

1) MACT CLAIM PETITION DRAFT

BEFORE THE HON'BLE MOTOR ACCIDENTS CLAIMS TRIBUNAL, PUNE, MAHARASHTRA

M.A.C.P. NO. _____ OF 2024

IN THE MATTER OF:

Shri. Dummy Kumar

S/o Shri. Ram Kumar,

Age: 34 Years,

Occupation: [Specify Occupation, e.g., Software Engineer/Self-Employed],

Resident of: House No. 123, ABC Colony, Shivaji Nagar,

Pune, Maharashtra - 411005.

... **PETITIONER**

VERSUS

1. **Shri. Anil Sharma**

S/o [Father's Name - to be ascertained],

Age: [Age - to be ascertained],

Resident of: [Address - to be ascertained],

(Driver of Car No. MH-12-PQ-4567)

... **RESPONDENT NO. 1 (DRIVER)**

2. **Shri. Rahul Jain**

S/o [Father's Name - to be ascertained],

Age: [Age - to be ascertained],

Resident of: [Address - to be ascertained],

(Owner of Car No. MH-12-PQ-4567)

... **RESPONDENT NO. 2 (OWNER)**

3. **XYZ General Insurance Co. Ltd.**

[Address of Branch Office],

(Insurer of Car No. MH-12-PQ-4567 vide Policy No. POL/C-12345/2023-24, valid from [Start Date] to [End Date])

... **RESPONDENT NO. 3 (INSURER)**

****PETITION UNDER SECTION 166 READ WITH SECTION 140 AND SECTION 158(6) OF THE MOTOR VEHICLES ACT, 1988 FOR COMPENSATION****

****MAY IT PLEASE YOUR LORDSHIP(S),****

The humble petitioner, most respectfully, submits as under:

1. That the present petition for compensation is being filed by the Petitioner, Shri. Dummy Kumar, who sustained grievous injuries in a horrific road traffic accident which occurred on ****12th March 2024****, at ****Pune, Maharashtra****, due to the rash and negligent driving of the Respondent No. 1.
2. That on the fateful day of ****12th March 2024****, at approximately [Time, e.g., 2:30 PM], the Petitioner, Shri. Dummy Kumar, was lawfully riding his two-wheeler bearing registration No. [Two-wheeler No. - if available] at [Specific Location/Road, e.g., near XYZ Chowk, Pune], with all due care and caution and adhering to traffic rules.
3. That at the aforesaid date, time, and place, a ****Car bearing Registration No. MH-12-PQ-4567****, being driven by Respondent No. 1, Shri. Anil Sharma, in a highly rash and negligent manner, at an excessive speed and without observing traffic norms, came from behind and violently hit the Petitioner's two-wheeler. The impact was severe, causing the Petitioner to be thrown off his two-wheeler, resulting in grievous bodily injuries.
4. That immediately after the accident, the Petitioner was rushed to [Name of Hospital, e.g., Sanjeevani Hospital, Pune] for urgent medical attention.
5. ****MEDICAL HISTORY & INJURIES:****
 - a. Upon examination, the Petitioner was diagnosed with the following severe injuries:
 - i. ****Fracture of the right femur.****
 - ii. ****Head injury (minor concussion).****
 - iii. ****Multiple abrasions on the left arm.****
 - b. The Petitioner was admitted to the hospital on ****12th March 2024****.

- c. Due to the severity of the fracture, the Petitioner had to undergo major surgery, specifically ****ORIF (Open Reduction and Internal Fixation)****, which was performed on ****13th March 2024****.
- d. The Petitioner was discharged from the hospital on ****20th March 2024****, after undergoing intensive medical treatment and surgical intervention.
- e. Post-discharge, the treating doctor advised the Petitioner for ****physiotherapy for a period of 3 months**** to aid in recovery and rehabilitation.
- f. The Petitioner was further advised ****complete rest for 2 months**** and regular ****follow-up examinations every 15 days****.
- g. Significantly, the treating doctor has recommended a ****possible permanent disability assessment after 6 months****, indicating the long-term ramifications of the injuries sustained.

6. That the accident occurred solely due to the rash and negligent driving of Respondent No. 1. Respondent No. 2, being the owner of the offending vehicle, is vicariously liable for the acts of his driver. Respondent No. 3, being the insurer of the offending vehicle, is contractually and statutorily liable to indemnify the owner and pay the compensation to the Petitioner.

7. ****COMPENSATION SOUGHT:****

The Petitioner has suffered immense physical pain, mental agony, financial losses, and impairment of his normal life due to the accident. The details of compensation claimed are as follows:

S. No.	HEAD OF COMPENSATION	AMOUNT CLAIMED (INR)
:-----	:-----	:-----
1.	Hospital Bill & Actual Medical Exp.	1,05,500/-
	(Bills attached for Hospital, Meds, MRI)	
2.	Estimated Future Medical Exp.	25,000/-
	(Physiotherapy, follow-ups, tests)	
3.	Loss of Income (2 months)	70,000/-
	(Based on assumed income of Rs. 35,000 p.m.)	
4.	Pain and Suffering	1,00,000/-
5.	Loss of Amenities & Enjoyment of Life	75,000/-
6.	Special Diet, Attendant Charges, Conveyance	50,000/-
7.	Future Loss of Earning Capacity due to Permanent Disability (to be assessed upon final disability report)	5,00,000/-
8.	Loss of Marriage Prospects (if applicable)	[To be assessed]
9.	Other Pecuniary & Non-Pecuniary Damages	74,500/-
	TOTAL COMPENSATION CLAIMED	**10,00,000/-**
	** (Rupees Ten Lakhs Only) **	

8. That the Petitioner is also entitled to interest at the rate of 18% per annum on the awarded amount from the date of filing of this petition till its realization, along with costs of the present proceedings.

9. That there is no other claim petition pending before any court or tribunal regarding this accident.

10. That the cause of action for filing the present petition arose on 12th March 2024, when the accident occurred, and is a continuing one till full compensation is paid.

11. That the Hon'ble Tribunal at Pune has the territorial jurisdiction to entertain and try the present petition as the accident occurred within its territorial limits and the Petitioner resides within its jurisdiction.

****PRAYER****

In light of the aforesaid facts and circumstances, the Petitioner most humbly prays that this Hon'ble Tribunal may be pleased to:

- a. Award a sum of ****Rs. 10,00,000/- (Rupees Ten Lakhs Only)**** as compensation to the Petitioner, along with interest at the rate of ****18% per annum**** from the date of filing of this petition till its actual realization.
- b. Direct the Respondents jointly and severally, particularly Respondent No. 3 (Insurer), to pay the awarded compensation.
- c. Award costs of the present proceedings in favour of the Petitioner.
- d. Pass any other or further order(s) as this Hon'ble Tribunal may deem fit and proper in the facts and circumstances of the case, in the interest of justice and equity.

AND FOR THIS ACT OF KINDNESS, THE PETITIONER, AS IN DUTY BOUND, SHALL EVER PRAY.

****PETITIONER****

Through Counsel,

****[Your Name/Firm Name]****

Senior Advocate, MACT

Pune

****VERIFICATION****

I, Shri. Dummy Kumar, S/o Shri. Ram Kumar, aged 34 years, residing at House No. 123, ABC Colony, Shivaji Nagar, Pune, Maharashtra - 411005, the Petitioner above-named, do hereby verify on solemn affirmation that the contents of paragraphs 1 to 11 of the petition are true and correct to my knowledge and belief, no part of

it is false and nothing material has been concealed therefrom.

Verified at Pune this ____ day of April 2024.

****PETITIONER****

****2) LEGAL NOTICE DRAFT (INSURANCE)****

****[YOUR LAW FIRM LETTERHEAD]****

****Advocate J. P. Singh & Associates****

Senior Counsel, MACT & Civil Laws

Office No. 101, Legal Chambers,

Near District Court, Pune, Maharashtra - 411001

Phone: +91-9876543210

Email: adv.jpsingh@lawfirm.com

****Ref. No. JPS/LN/MACT/2024/04-001****

****Date: 05 April 2024****

****REGISTERED A.D. / SPEED POST****

****TO,****

The Manager,

****XYZ General Insurance Co. Ltd.****

[Address of Branch Office, e.g., 2nd Floor, Corporate Avenue,

FC Road, Pune, Maharashtra - 411004]

****SUBJECT: LEGAL NOTICE FOR CLAIM OF COMPENSATION ON BEHALF OF SHRI. DUMMY KUMAR REGARDING ROAD TRAFFIC ACCIDENT ON 12TH MARCH 2024 INVOLVING VEHICLE NO. MH-12-PQ-4567 (INSURED WITH YOUR COMPANY) AND YOUR LIABILITY UNDER POLICY NO. POL/C-12345/2023-24.****

Dear Sir/Madam,

Under instructions from and on behalf of my client, ****Shri. Dummy Kumar****, S/o Shri. Ram Kumar, aged 34 years, Occupation: [Specify Occupation], residing at House No. 123, ABC Colony, Shivaji Nagar, Pune, Maharashtra - 411005 (hereinafter referred to as "my client"), I serve upon you the following Legal Notice:

1. That on ****12th March 2024****, my client, Shri. Dummy Kumar, was riding his two-wheeler at Pune, Maharashtra, when a Car bearing Registration No. ****MH-12-PQ-4567**** (hereinafter referred to as "the offending vehicle"), being driven by Shri. Anil Sharma (Respondent No. 1 in the upcoming MACT Petition) in a rash and negligent manner, hit my client's two-wheeler from behind, causing a severe accident.
2. That as a direct consequence of the said accident, my client sustained grievous injuries, including a ****fracture of the right femur, head injury (minor concussion), and multiple abrasions on his left arm****. He was admitted to [Name of Hospital, e.g., Sanjeevani Hospital, Pune] on the very same day, i.e., 12th March 2024.
3. That my client underwent a major surgical procedure (ORIF) on 13th March 2024 and was discharged on 20th March 2024. He has been advised extensive physiotherapy for 3 months, complete rest for 2 months, and follow-up examinations. Furthermore, the treating doctor has recommended an assessment for possible permanent disability after 6 months.
4. That my client has incurred significant medical expenses amounting to ****Rs. 1,05,500/-**** (Rupees One Lakh Five Thousand Five Hundred Only) towards hospitalization, medicines, and diagnostic tests (MRI). Additionally, substantial future medical expenses, including physiotherapy (estimated at Rs. 15,000/-) and follow-up consultations, are anticipated. He has also suffered a substantial loss of income during his recovery period, besides experiencing immense pain, suffering, loss of amenities, and potential future loss of earning capacity due to the injuries.
5. That the offending vehicle, Car No. MH-12-PQ-4567, owned by Shri. Rahul Jain, was insured with your company vide ****Policy No. POL/C-12345/2023-24****, which was valid and in force on the date of the accident. Therefore, your company is legally obligated under Sections 147 and 149 of the Motor Vehicles Act, 1988, to indemnify the owner and compensate my client for all losses and damages suffered.
6. That you are hereby called upon to pay my client a total compensation of ****Rs. 10,00,000/- (Rupees Ten Lakhs Only)**** for the injuries sustained, medical expenses, loss of income, pain and suffering, loss of amenities, future medical expenses, and potential loss of earning capacity, within a period of ****15 (fifteen) days**** from the receipt of this notice.
7. Please note that the above-mentioned sum is a reasonable estimate of the damages suffered by my client, and he reserves the right to claim a higher amount as may be assessed by the Hon'ble Motor

Accidents Claims Tribunal.

****DEMAND:****

Take notice that if you fail to pay the aforesaid amount of ****Rs. 10,00,000/- (Rupees Ten Lakhs Only)**** to my client within the stipulated period of 15 days, my client shall be constrained to initiate appropriate legal proceedings against your company, along with the driver and owner of the offending vehicle, before the Hon'ble Motor Accidents Claims Tribunal at Pune. In such an event, you shall be liable for the said compensation amount, along with interest thereon at the rate of 18% per annum from the date of the accident till realization, and all costs and expenses of the litigation, solely at your risk and cost.

A copy of this notice has been retained in my office for record and further necessary action.

Yours faithfully,

****[Signature]****

****(Advocate J. P. Singh)****

Counsel for Shri. Dummy Kumar

**3) WRITTEN ARGUMENTS ON COMPENSATION**

****BEFORE THE HON'BLE MOTOR ACCIDENTS CLAIMS TRIBUNAL, PUNE, MAHARASHTRA****

****M.A.C.P. NO. _____ OF 2024****

****IN THE MATTER OF:****

****Shri. Dummy Kumar****

... **PETITIONER**

****VERSUS****

****Shri. Anil Sharma & Ors.****

... **RESPONDENTS**

****WRITTEN ARGUMENTS ON BEHALF OF THE PETITIONER REGARDING COMPENSATION****

****MAY IT PLEASE YOUR LORDSHIP(S),****

Most respectfully submitted on behalf of the Petitioner, Shri. Dummy Kumar, seeking just and fair compensation for the grievous injuries sustained in the road traffic accident dated 12th March 2024. The Petitioner humbly submits these arguments for the assessment of compensation under various heads:

****I. MEDICAL EXPENSES (Actual and Estimated Future)****

1. The Petitioner, a 34-year-old individual, suffered a ****fracture of the right femur, a minor concussion, and multiple abrasions**** in the accident. These are serious injuries requiring extensive medical intervention.
2. Documentary evidence, including the hospital bill, medicine bills, and MRI scan reports, clearly demonstrates actual medical expenses incurred to the tune of ****Rs. 1,05,500/-****. These expenses are fully verifiable and directly attributable to the accident.
3. Furthermore, the treating doctor has advised a stringent post-operative regimen, including ****physiotherapy for 3 months (estimated at Rs. 15,000/-)**** and regular follow-ups for a considerable period. These are essential for the Petitioner's recovery and rehabilitation and thus fall under future medical expenses. An additional amount of ****Rs. 10,000/-**** has been reasonably estimated for follow-up consultations, diagnostic tests, and contingency medical needs.
4. The Hon'ble Supreme Court in ****Raj Kumar v. Ajay Kumar & Anr., (2011) 1 SCC 343****, emphasized that medical expenses include both actual and future medical expenses reasonably likely to be incurred. The Petitioner prays for full reimbursement of all medical expenses, actual and estimated, totaling ****Rs. 1,30,500/-****.

****II. LOSS OF INCOME****

1. The Petitioner, aged 34 years, was gainfully employed/self-employed with an assumed monthly income of ****Rs. 35,000/-****. Due to the nature of injuries (fractured femur, head injury, major surgery) and the doctor's explicit advice of ****2 months of complete rest****, the Petitioner was rendered entirely incapacitated from performing his work duties during this period.
2. Therefore, the Petitioner has suffered a direct and ascertainable loss of income amounting to ****Rs. 70,000/- (Rs. 35,000/- x 2 months)****. This loss is a direct pecuniary damage that the Petitioner is entitled to recover.
3. Reference is drawn to the principles laid down in ****Syed Sadiq v. Divisional Manager, United India**

Insurance Co. Ltd., (2014) 2 SCC 735**, where the Court recognized the need to compensate for loss of earning capacity during the recovery period.

****III. PAIN AND SUFFERING****

1. The Petitioner underwent an extremely traumatic experience. A violent collision, followed by a fractured femur requiring major ****ORIF surgery****, a head injury, and multiple abrasions, undoubtedly caused immense physical pain and mental anguish. The period of hospitalization, surgery, and subsequent bed rest, coupled with the pain of physiotherapy, has been agonizing.
2. Compensation for pain and suffering is a non-pecuniary head, which, though difficult to quantify precisely, must be awarded to adequately reflect the agony undergone by the victim. The Hon'ble Supreme Court in ****Sarla Verma & Ors. v. Delhi Transport Corporation & Anr., (2009) 6 SCC 121****, and numerous subsequent judgments, has consistently held that substantial amounts must be awarded under this head, commensurate with the severity and duration of pain.
3. Considering the grievous nature of injuries, major surgery, and prolonged recovery, a sum of ****Rs. 1,00,000/-**** is prayed for under this head.

****IV. LOSS OF AMENITIES AND ENJOYMENT OF LIFE****

1. The Petitioner, a young man of 34 years, has suffered a significant disruption to his normal life, routine, and leisure activities. The fracture and head injury have curtailed his ability to engage in daily activities, hobbies, social interactions, and other forms of enjoyment. The period of immobility, dependence on others, and the inability to participate in life's pleasures constitute a considerable loss of amenities.
2. This head of compensation is distinct from pain and suffering and addresses the impact on the quality of life. The Hon'ble Supreme Court in ****Jagdish v. Mohan & Ors., (2018) 14 SCC 276****, has emphasized the importance of adequately compensating for the loss of amenities.
3. A sum of ****Rs. 75,000/-**** is claimed under this head to compensate the Petitioner for the significant curtailment of his life's enjoyment.

****V. SPECIAL DIET, ATTENDANT CHARGES, AND CONVEYANCE****

1. During hospitalization and the subsequent recovery period at home, the Petitioner required a special diet to aid healing and recovery. Family members had to take time off work or engage help, incurring attendant charges.
2. Furthermore, numerous visits to the hospital for follow-ups, physiotherapy sessions, and diagnostic tests necessitated significant conveyance expenses. These are genuine and necessary expenses arising directly from the accident.
3. Considering the 8 days of hospitalization, 2 months of rest, and 3 months of physiotherapy, a consolidated

sum of **Rs. 50,000/-** is prayed for to cover these essential expenses.

****VI. FUTURE LOSS OF EARNING CAPACITY DUE TO PERMANENT DISABILITY****

1. Crucially, the treating doctor has recommended an assessment for **possible permanent disability after 6 months**. This recommendation itself is indicative of the potential for long-term functional impairment stemming from the fractured femur and head injury. While a definitive disability certificate is yet to be obtained, the very possibility casts a dark shadow over the Petitioner's future earning capacity and quality of life.
2. The Hon'ble Supreme Court in ****Erudhaya Priya v. State Express Transport Corporation Ltd. (Tamil Nadu) & Anr., (2021) 5 SCC 722****, reiterated that compensation for functional disability must be awarded even if there is no physical disability, provided there is a loss of earning capacity. The landmark judgment in ****National Insurance Company Limited v. Pranay Sethi and Ors., (2017) 16 SCC 680****, provides the framework for calculating future loss of earnings based on the multiplier method, which will be applicable once the extent of disability is ascertained.
3. Given the nature of the fracture and its potential to cause limp, stiffness, or chronic pain, and the minor concussion's potential long-term effects, it is highly probable that the Petitioner will suffer a functional disability impacting his ability to work or pursue his profession with the same efficiency.
4. The Petitioner therefore claims a placeholder amount of ****Rs. 5,00,000/-**** under this head, subject to final assessment upon production of the permanent disability certificate. The Tribunal is urged to consider the potential future impact and award a just sum or direct a re-assessment once the disability is quantified.

****VII. INTEREST AND COSTS****

1. The Petitioner is entitled to interest on the awarded amount from the date of filing the petition until realization, as per statutory provisions and settled legal principles. The delay in receiving compensation effectively diminishes its value. An interest rate of 18% p.a. is just and reasonable.
2. The Petitioner is also entitled to the costs incurred in prosecuting this claim.

****CONCLUSION:****

In view of the above submissions, the Petitioner prays that this Hon'ble Tribunal may graciously consider the extensive suffering, pecuniary losses, and the significant impact on his life caused by the respondents' negligence. A total compensation of ****Rs. 10,00,000/- (Rupees Ten Lakhs Only)****, along with interest at 18% p.a. and costs, is just and fair and would adequately compensate the Petitioner for the losses and injuries sustained.

****AND FOR THIS ACT OF KINDNESS, THE PETITIONER, AS IN DUTY BOUND, SHALL EVER PRAY.****

****Dated: 15 April 2024****

****Place: Pune****

****(Advocate J. P. Singh)****

Senior Counsel for Petitioner
Pune
